

25CHCV00247 25CHCV00247

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-01

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Case Number: 25CHCV00247 Hearing Date: July 1, 2026 Dept: F43

Dept. F43

Hearing Date: 07-01-26

Case # 25CHCV00247, Vieira v. Kaiser

Foundation Hospitals

Trial Date: N/A

MOTION TO VACATE

DISMISSAL ON A DEMURRER OR, IN THE ALTERNATIVE, ENTER A STAY

MOVING PARTY: Plaintiff Jodi Vieira, in pro per

RESPONDING PARTY: Defendant Kaiser Foundation Hospitals

RELIEF REQUESTED

Order vacating dismissal entered on September 4, 2025 and setting aside the resulting judgment as void or, in the alternative, stay the dismissal pending resolution of the motion to vacate the underlying 2019 judgment in Los Angeles Superior Court, Case No. 19VECV01454.

RULING: Motion is denied.

SUMMARY OF ACTION

This is a follow-up action to plaintiff Jody

Vieira's (Plaintiff) previous, unsuccessful action against defendant Kaiser Foundation Hospitals (Defendant) arising from Defendant's decision to fire her from her job as a nurse in 2018.

Plaintiff sued Defendant in 2019, alleging causes of action for: (1) discrimination based on her alleged disability (Gov. Code, § 12940); (2) violation of the state's Family Rights Act (Gov. Code, § 12945.2); (3) violating the law against firing whistleblowers (Lab. Code, § 1102.5); and (4) firing her in violation of public policy. (Case No. 19VECV01454.) The trial court granted Defendant summary judgment in September 2021 and that judgment was later affirmed on appeal. (See *Viera v. Kaiser Foundation Hospitals* (June 26, 2023), B317139 [nonpub. opn.].)

Plaintiff filed the instant action against Defendant on January 22, 2025. Her First Amended Complaint asserted: (1) breach of contract; (2) fraudulent inducement; (3) "negligence per se"; (4) unfair business practices (Bus. & Prof. Code, § 17200); (5) intentional infliction of emotional distress; (6) violating the law governing requests for personnel records (Lab. Code, § 1198.5); (7) fraud; and (8) negligent misrepresentation. Plaintiff alleges Defendant terminated her employment in July 2018 because she refused to sign a "Last Chance Agreement" related to Plaintiff's responsibility for a workplace chemical spill.

Plaintiff is self-represented.

On April 7, 2025, Defendant removed this action to federal court, where a motion to dismiss the first cause of action was granted and the matter remanded to this court.

On September 4, 2025, the court sustained Defendant's demurrer to the seven remaining causes of action without leave to amend. The court indicated that judgment in the first action barred the current action and found that the claims in the First Amended Complaint were barred by the statute of limitations. (09/04/25 Minute Order, at pp. 6-7.) The court declined to examine Plaintiff's proposed second amended complaint because the document was presented during the hearing and without notice or opportunity to be heard by Defendant. The court ordered the First Amended Complaint dismissed with prejudice.

On September 11, 2025, Plaintiff filed a motion for reconsideration of the court's September 4, 2025, Minute Order and included a copy of the same proposed second amended complaint. (9/12/25 Plaintiff's Exhibits in Support of

Motion for Reconsideration, Exh. B.) The court (Hon. Gary Micon) denied the motion. (12/16/25 Minute Order, at pp. 7-8.)

In its analysis, the court indicated that Plaintiff had not shown any new or different facts, law, or circumstances to warrant reconsideration of the order sustaining the demurrer without leave to amend. Plaintiff claimed the 2023-2025 Workers Compensation Appeals Board (WCAB) documents were not discoverable despite her diligent efforts even though they existed before the hearing on the demurrer and the amended judgment was mailed to Plaintiff on May 3, 2024. The court also noted that Plaintiff's motion failed to cite any new law. (Id.) Finally, the court found that the proposed pleading was not new or different because it existed when Plaintiff filed her opposition to the demurrer.

On December 17, 2025, Defendant filed a Notice of Entry of Judgment or Order.

On December 23, 2025, Plaintiff filed an appeal from (1) the Judgment of Dismissal with prejudice, (2) the September 4, 2025, Demurrer ruling, and (3) the December 17, 2025, Order on the Motion for Reconsideration. Plaintiff filed a notice of abandoning her appeal on February 12, 2026.

On February 25, 2026, Plaintiff a motion for leave to amend and file a second amended complaint pursuant to Code of Civil Procedure section 473. The court denied the motion, finding Plaintiff failed to provide any analysis concerning mistake, inadvertence, surprise, or excusable neglect in failing to file a second amended complaint that was in existence since September of 2025. Moreover, Plaintiff had added no new allegations to the proposed pleading and failed to state what new WCAB findings she intended to incorporate into the proposed pleading. Finally, the proposed pleading included causes of action the court dismissed from the First Amended Complaint without leave to amend due to res judicata and collateral estoppel issues.

On April 7, 2026, Plaintiff filed the instant motion to vacate the September 4, 2025, dismissal and set aside the resulting judgment or, in the alternative, stay the dismissal pending the resolution of her motion to vacate the judgment in Jodi Vieira v. Kaiser Foundation Hospitals, et al., Case No. 19VECV01454. Defendant filed an opposition on June 17, 2026. No reply was filed, but Plaintiff filed several requests for judicial notice.

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SUMMARY OF ARGUMENTS

Plaintiff claims she has filed a motion to vacate the judgment in the prior case (Jodi Vieira v. Kaiser Foundation Hospitals, et al., Case No. 19VECV01454) against Defendant in order to eliminate the res judicata and collateral estoppel issues. According to Plaintiff, a certified settled statement and the defendants' response to the settled statement was issued confirming material defects in the record, including the absence of a complete and reviewable record necessary for meaningful appellate review. Based on the certified statement, the response to the certified statement, and the final WCAB decision, several defects exist in the summary judgment ruling in the prior case, and subsequent filings were not based on a complete or fair adjudication of issues in violation of due process. Plaintiff makes her motion pursuant to Code of Civil Procedure section 473, subdivision (d).

Defendant contends Plaintiff is attempting an untimely collateral attack against the judgment in Case No. 19VECV01454. According to Defendant, Plaintiff does not contend the summary judgment ruling in the prior case is void on its face but bases her arguments on limitations to the appellate record. As such, the summary judgment ruling and subsequent judgment in the prior case continue to have a preclusive effect on this matter. Next, Plaintiff fails to demonstrate the dismissal in this matter is void and that the court lacks jurisdiction over the parties. Moreover, Plaintiff is attempting to use this motion as a substitute for the appellate process and raises the same arguments this court has already considered. Any purported errors in the court's rulings on the demurrer and motion for reconsideration were fully reviewable on appeal, but the time to do so has expired. Therefore, the court lacks jurisdiction to address Plaintiff's motion to vacate. Plaintiff's repeated attempts to re-litigate finalized issues is precisely what the doctrine of res judicata was designed to prevent. Finally, Defendant asks the court to consider deeming Plaintiff a vexatious litigant to prevent further meritless filings. (Opposition at p. 4, fn. 1.)

REQUESTS FOR JUDICIAL NOTICE

Defendant asks the court to take judicial notice of the following documents pursuant to Evidence Code section 452, subdivision (d) and section 453:

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RJN - Exhibit 1: Plaintiff Jodi

Vieira's Motion to Vacate and Declare Void Summary Judgment, filed on March 2, 2026 in Jodi Vieira v. Kaiser Foundation Hospitals, et al., Los Angeles Superior Case No. 19VECV01454; and

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RJN - Exhibit 2: Defendants'

Kaiser Foundation Hospitals and Kaiser Health Plan, Inc.'s Opposition to the Motion to Vacate, filed on June 8, 2026 in Case No. 19VECV01454.

The court grants the request pursuant to Evidence Code section 452, subdivision (d).

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Plaintiff asks the court to take judicial notice of the following documents pursuant to Evidence Code section 452, subdivisions (c), (d), and (h) and section 453:

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RJN - Exhibit A: Findings and

Order of Workers' Compensation Judge Robin Brown, in WCAB Case Nos. ADJ11408575 and ADJ14068840, dated October 30, 2023;

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RJN - Exhibit B: Opinion and

Order Granting Petition for Reconsideration issued by the Workers' Compensation Appeals Board, dated February 5, 2024;

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RJN - Exhibit C: Decision After

Reconsideration issued by the Workers' Compensation Appeals Board, dated December 19, 2025;

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RJN - Exhibit D: Hon. Gary I.

Micon's December 16, 2025, Minute Order on Plaintiff's Motion for Reconsideration in this matter;

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RJN - Exhibit E: Plaintiff Jodi

Vieira's Notice of Lodging of Second Amended Complaint in Jodi Vieira v. Kaiser Foundation Hospitals, U.S. District Court for the Central District of California, Case No. 2:25-cv-03042-SB-AJR, filed on May 23, 2025;

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RJN - Exhibit F: Transcript from the September 2, 2025, hearing on the Demurrer in this matter;

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RJN - Exhibit G: Transcript from

the December 16, 2025, hearing on the Plaintiff's Motion for Reconsideration in this matter;

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RJN - Exhibit H: May 1, 2024,

Amended Judgment After Appeal, entered in Case No. 19VECV01454; and

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RJN - Exhibit J: Minute Order of

the Honorable Huey P. Cotton's ruling entered on June 22, 2026, as to plaintiff Jodi Vieira's Motion to Vacate and Declare Void Summary Judgment in Case No. 19VECV01454.

The court grants Plaintiff's request pursuant to Evidence Code section 452, subdivision (d).

Pursuant to Evidence Code section 452, subdivision (d), the court on its own takes judicial notice of the Honorable Huey P. Cotton's ruling entered on June 22, 2026, as to plaintiff Jodi Vieira's

Motion to Vacate and Declare Void Summary Judgment, filed on March 2, 2026 in Jodi Vieira v. Kaiser Foundation Hospitals, et al., Los Angeles Superior Case No. 19VECV01454.

EVIDENTIARY OBJECTIONS

Defendant raises the following objections to Plaintiff's evidence:

Declaration of Jodi Vieira and Attached Exhibits:

Overruled: 1, 3.

Sustained: 2, 4, 5,
6, 7, 8, 9, 10 (Exhibit A), 11 (Exhibit B), 12 (Exhibit C)[1].

ANALYSIS

A. Vacating a Dismissal and Entry of Judgment
as Void

Plaintiff contends the court should vacate the September 4, 2025, Dismissal and any subsequent entry of judgment because the Demurrer that led to the dismissal is based on a void judgment in Jodi Vieira v. Kaiser Foundation Hospitals, et al., Case No. 19VECV01454.

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).) The law favors hearings on the merits, so any doubts as to the application of section 473 should be resolved in favor of the party seeking relief from default. (See *Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1139-1140.) A party has six months after judgment is entered to file a motion to set aside the judgment. (Code Civ. Proc., § 473, subd. (b).) If a judgment is void on its face, the six-month time limit does not apply. (Code Civ. Proc., § 473 subd. (d); see *Calvert v. Al Binal* (2018)

29 Cal.App.5th 954, 960.) Under section 473, subdivision (d), a judgment or order is void on its face when the invalidity is apparent upon an inspection of the judgment roll without consideration of extrinsic evidence. (Morgan v. Clapp (1929) 207 Cal. 221, 224; Kremerman v. White (2021) 71 Cal.App.5th 358, 370.)

Plaintiff does not contend that the dismissal in this matter is void or that the court's rulings on the demurrer and the motion for reconsideration are themselves void.

Rather, Plaintiff argues the demurrer ruling and dismissal are predicated on a summary judgment ruling in Case No. 19VECV01454 that is "void" because of substantial due process defects, mainly "the absence of a complete and reliable record necessary for meaningful appellate review, as confirmed by the certified settled statement."

According to plaintiff, the court only sustained the demurrer because of res judicata and collateral estoppel issues stemming from summary judgment ruling in Case No. 19VECV01454. Plaintiff has filed a motion to deem the summary judgment ruling as void and to vacate the subsequent judgment. Based on the filing of this motion, Plaintiff claims the court should set aside the dismissal and exercise its equitable authority to stay enforcement of the dismissal until her motion to vacate the judgment in Case No. 19VECV01454 is resolved.

As with Plaintiff's prior attempts to reverse the September 4, 2025, ruling on the demurrer, the instant motion lacks merit.

First, Plaintiff's contentions concerning the summary judgment in the prior case being void fail because Judge Cotton has denied Plaintiff's motion to vacate. (See Viera v. Kaiser Foundation Hospitals, et al. (June 22, 2026), 19VECV01454.) In his analysis, Judge Cotton reasoned that Plaintiff presented no argument that the court's order granting summary judgment was void, that the certified settled statement did not reach the Court of Appeal, and that the certified statement did not become part of the appellate record. (Id. at p. 3.) Judge Cotton also found that Plaintiff failed to demonstrate diligence in seeking to set aside the summary judgment ruling—the settled statement and response existed in 2022. (See id. at p. 3 "[T]o the extent that the Court of Appeals did

not consider any matters included in the settled statement, Plaintiff would have been on notice of this when the Court of Appeal[] issued its ruling on June 26, 2023.”.] Plaintiff waited over three years after the Court of Appeal issued its ruling to raise the “settled statement” issue. Moreover, Plaintiff presents no evidence that she has or intends to appeal Judge Cotton’s ruling. Thus, because summary judgment ruling in Case No. 19VECV01454 remains valid, the ruling and judgment entered in the case continue to have a preclusive effect on Plaintiff’s claims in this matter.

Therefore, Plaintiff fails to present a valid basis for staying dismissal of this matter.

Even still, Plaintiff’s motion also lacks merit because it is an improper attempt at a collateral attack on the judgment in Case No. 19VECV01454.

A collateral attack is any procedural challenge or attempt to impeach a judgment in a proceeding other than the proceeding in which the judgment was initially entered. (Harley v. Superior Court (1964) 226 Cal.App.2d 432, 435-436.) The timing of a challenge determines whether it is direct or collateral. “[A] motion to vacate or set aside a judgment after the statutory time has elapsed for direct attack by a motion is a collateral attack. Similarly, once the time for appeal has expired, the attack is no longer direct but is in fact a collateral attack.” (Estate of Buckley (1982) 132 Cal.App.3d 434, 446-447, fn. 2.) Thus, a party who misses applicable deadlines for a direct challenge is limited to the more restricted avenue of collateral attack.

“A judgment that is void on the face of the record is subject to either direct or collateral attack at any time.” (OC Interior Services, LLC v. Nationstar Mortgage, LLC (2017) 7 Cal.App.5th 1318, 1328, superseded by Tsasu, LLC v. U.S. Bank Trust, N.A. (2021) 62 Cal.App.5th 704 on other grounds.) “To prove that the judgment is void, the party challenging the judgment is limited to the judgment roll, i.e., no extrinsic evidence is allowed.” (Ibid.) On collateral attack, the inquiry is strictly limited to the judgment roll—extrinsic evidence is wholly inadmissible. (Crouch v. H. L. Miller (1915) 169 Cal. 341, 343; Harley v. Superior Court (1964) 226 Cal.App.2d 432, 436-438.) In cases where the defendant has answered or appeared by a demurrer which was

sustained, the judgment roll includes:

“the pleadings, all orders striking out any pleading in whole or in part, a copy of the verdict of the jury, the statement of decision of the court, or finding of the referee, and a copy of any order made on demurrer, or relating to a change of parties, and a copy of the judgment[.]” (Code Civ. Proc., § 670, subd. (b).) “[I]f a party admits facts showing that a judgment is void, or allows such facts to be established without opposition, then, as a question of law, a court must treat the judgment as void upon its face.” (OC Interior Services, LLC, supra, 7 Cal.App.5th at p. 1328.)

Other than her contentions concerning the summary judgment ruling in the prior case being void, Plaintiff presents no evidence from the judgment roll in this matter that demonstrates the dismissal in this matter is void on its face. Plaintiff focuses on the judgment roll in Case No. 19VECV01454 to attack the judgment in that matter and the dismissal in this matter. But the dismissal appears valid on its face.

“[A] judgment that is valid on the face of the record is generally not subject to collateral attack.” (OC Interior Services, LLC, supra, 7 Cal.App.5th at p. 1328.) “[A] judgment that is valid on the face of the record must be challenged by direct attack, such as a motion in the original action, an appeal in the original action, or an independent equitable action. A judgment valid on the face of the record may be set aside under Code of Civil Procedure section 473, subdivision (b) within a reasonable time after the party learns of the judgment, or it may be set aside in an independent equitable action without time limit. Extrinsic evidence, i.e., evidence outside the judgment roll, may be presented on direct attack of a judgment that is valid on the face of the record to rebut the presumption that the judgment is valid.” (Id. at p. 1328, fn. 3, citations omitted.)

The dismissal in this matter is valid on its face because Plaintiff points to nothing in the judgment roll or any extrinsic evidence which shows the reasoning for the court's ruling on the demurrer was invalid.

First, Plaintiff did not establish that the summary judgment and entry of judgment in Case No. 19VECV01454 was void, and Judge

Cotton denied her motion to vacate. As such, the court's res judicata and collateral estoppel reasoning for sustaining the demurrer without leave to amend remains valid.

Second, Plaintiff does not move for relief pursuant to Code of Civil Procedure section 473, subdivision (b), which requires the party to file their motion within six months of the dismissal or judgment being entered. Nor does Plaintiff qualify for equitable relief due to extrinsic fraud or mistake because she fails to demonstrate diligence in seeking to set aside or vacate the dismissal upon discovery of any mistake. (Stiles v. Wallis (1983) 147 Cal.App.3d 1143, 1147-1148; see Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 40-41.) Here, the claimed mistake is Plaintiff discovering the "certified settled statement" was never sent to the Court of Appeal in the prior case and that supposedly led to an incomplete record of review of the summary judgment motion. However, Plaintiff has failed to demonstrate any diligence in discovering the supposed omission or remedying the omission, having waited over three years from entry of the appellate ruling in the prior case to file her motion to vacate in Case No. 19VECV01454.

It appears Plaintiff is attempting to attack the summary judgment ruling in this court in order to circumvent Judge Cotton's ruling and her failure to timely raise the "missing settled statement" issue. This is an improper collateral attack, and this court lacks jurisdiction to make any such ruling in Case No. 19VECV01454.

Furthermore, Plaintiff never asserts the demurrer and dismissal in this matter are void. By extension, Plaintiff fails to show the court's ruling on the motion for reconsideration is void.

Third, Plaintiff misrepresents this court's ruling by claiming the dismissal was entirely based on the judgment in the 2019 case. However, a review of the Hon. Judge Micon's September 4, 2025, Minute Order demonstrates the court also sustained the demurrer because Plaintiff's claims are barred by the statute of limitations. (09/04/26 Minute Order at pp. 6-7.) According to the order, Plaintiff's claims in this matter are based on conduct that occurred no later than July of 2018, and the statutes of limitations for her fraud and negligence and emotional distress claims expired in 2021 and 2020, respectively. (Id. at pp. 6-7.) Plaintiff

claims the statutes were tolled due to Defendant's past and continuing fraudulent concealment. (Motion at p. 8:13-16.) However, Plaintiff's Memorandum and Points of Authorities fails to state any specific facts, dates, or cite any specific evidence to support this contention. Although Plaintiff presents WCAB decisions from 2023, 2024, and 2025, Plaintiff does not identify any specific pages or facts in these documents indicating the statute was tolled.

Plaintiff has again failed to meet her evidentiary burden or provide an adequate argument demonstrating how the court's September 4, 2025, Demurrer ruling and the subsequent dismissal are void or based on a void order.

Therefore, the court denies Plaintiff's motion to vacate.

CONCLUSION and ORDER

Plaintiff's motion to vacate is denied.

Plaintiff to give notice.

[1] The court notes that Plaintiff failed to properly authenticate the exhibits attached to her declaration and failed to state the assertions in her declaration are facts within her personal knowledge.